

Terms of Service

SwordPay | swordpay.com | Effective: 28 May 2026

These Terms are your binding agreement with SwordPay. They govern your access to swordpay.com and its features, each Creator Interaction you take part in, and your dealings with us about your account, content, payments, and disputes. Where we make a material change we will give you Notice, and continued use after it takes effect is acceptance. Nothing here removes any mandatory consumer right that applies to you under local law.

Definitions

Term	Meaning
SwordPay / We / Us / Our	The platform operated at swordpay.com, and its operator.
Creator	A user whose account is set up to upload and monetise Content.
Fan	A user whose account is set up to purchase access to Creator Content.
User	Any person with a SwordPay account — Creator, Fan, or both.
Content	Any image, video, audio, text, metadata, message, livestream, or other material uploaded to SwordPay.
Creator Interaction	Any transaction granting a Fan access to a Creator's Content.
Fan Payment	Any payment made by a Fan in connection with a Creator Interaction.
Platform Fee	10% of the Fan Payment plus US\$0.50 per transaction, plus any currency-conversion and bank-transfer fees we incur on your behalf.
Creator Earnings	The Fan Payment minus the Platform Fee and any applicable taxes.
Notice / Notify	Our communication to you by in-platform message, email, SMS, or post.
Co-Authored Content	Content that features a person other than the uploading Creator.

Who we are

General enquiries: support@swordpay.io.

Eligibility

To use SwordPay you must be at least 18, be legally able to enter a binding contract with us, not have been convicted of a serious crime, provide accurate registration information, and be lawfully permitted in your country to view and post the Content you intend to. We may reject any application at our discretion.

Account setup

Fan accounts.

A Fan must provide a valid email address, a username, a password meeting our complexity requirements, and a valid payment method.

Creator accounts.

A Creator must additionally upload a valid government-issued photo ID, provide a biometric selfie matched to that ID, complete identity verification through our verification provider (currently Ddidit), add a bank account or other approved payout method, provide tax identification where required by law, set their prices, and provide any further information we request. We may re-verify identity at any time; failure to complete re-verification may suspend payouts or the account.

Content**Ownership.**

You keep ownership of Content you upload. By uploading, you grant SwordPay a perpetual, worldwide, royalty-free, non-exclusive, sublicensable, transferable licence to host, display, distribute, reproduce, create derivative works of, and otherwise use your Content as needed to operate and improve SwordPay.

Responsibility.

You are solely responsible for Content uploaded under your account. You warrant for each item that you own it or hold all necessary rights and releases, that it infringes no third-party right, that it complies with our Acceptable Use Policy and all applicable laws, that it is of satisfactory quality and matches its description, and — for Co-Authored Content — that you have written, informed consent from every person featured and have confirmed they are at least 18.

Moderation.

We may pre-screen, monitor, scan, or reuse Content to enforce our Terms, and may remove Content that breaches them without notice. We are not obliged to pre-screen and are not liable for losses you claim from removal carried out in line with these Terms. Each Creator agrees to act as custodian of records for Content uploaded from their account.

Fan payments and purchases

- Creator Interactions are governed by the contract between Fan and Creator.
- Creators set their own prices; all prices are charged in US dollars.
- Fan Payments exclude indirect sales taxes, which are added at the applicable rate at checkout.
- Where you provide more than one payment method and the first fails, we may attempt the next.
- You authorise our payment provider to charge your supplied method for each authorised Fan Payment.
- You agree not to request a refund or chargeback unless in good faith. We may suspend or close the account of any user who makes bad-faith requests.

Creator payouts

- The Platform Fee is deducted from each Fan Payment.
- Creator Earnings appear in your balance once cleared and can be withdrawn once the minimum payout threshold is met.
- Withdrawals are paid to the payout method on file.
- We do not control bank, e-wallet, or currency-conversion charges and are not responsible for them.
- If a Fan obtains a refund or chargeback, we may deduct the corresponding Creator Earnings from your balance.

- Except for direct bank-transfer details, we do not retain the data you submit when registering a payout method.

Tax compliance

You are solely responsible for your tax affairs. SwordPay does not provide tax advice and is not liable for your non-payment of tax. You warrant that you report all SwordPay-derived earnings to the relevant authorities and meet any registration obligations, including VAT where applicable. Where the law requires us to report your earnings to a tax authority, we will. If you become tax non-compliant in relation to SwordPay, or are named in a related tax investigation, we may suspend payouts, close the account, or withhold Creator Earnings until the matter is resolved.

Our rights

We may suspend, remove, or restrict Content that may breach our Terms; we use automated tools, AI classifiers, and hash-matching technology to identify violations; we may disclose information about your use of SwordPay in line with our Privacy Policy; we own all rights in SwordPay and its features except Content owned by Creators; we own anonymised data derived from your use and may use it for any lawful purpose; we may change the providers we use to process Fan Payments; and we may choose how we communicate with you.

What we are not responsible for

Content posted by users; whether a Creator will earn; bank, e-wallet, currency, or payment-provider charges; lost, stolen, or compromised accounts and resulting unauthorised activity; technical problems with your device, network, or software; compatibility with every device; Content recorded or circulated in breach of these Terms; exchanges between users; and whether a Creator's identity is recognised by those viewing their Content.

Suspension, closure, and earnings forfeiture

We may suspend or close your account with 30 days' Notice for any reason, or immediately and without Notice for the period needed to investigate where we reasonably believe you have seriously or repeatedly breached the Terms or that earnings result from unlawful or fraudulent activity. During an investigation we may pause Fan Payments, withhold Earnings, or refund Fan Payments. If the investigation concludes against you, we may delete the account, treat Earnings as forfeited, and refund or cancel Fan Payments, with a statement of reasons. If you do not dispute a decision within six months of Notification, you waive the right to dispute it. We may also withhold Earnings to set off losses from your breach, or where a lien or levy is placed on them.

Account deletion by the user

You may delete your account from account settings. For Fan accounts we delete within a reasonable time; no further Fan Payments are taken and access to purchased Content ends. For Creator accounts the account stays open until all active Fan access expires, after which we pay outstanding Earnings and delete the account. Co-Authored Content uploaded from another Creator's account is not automatically deleted. After deletion we may retain data as set out in our Privacy Policy.

Intellectual property

You confirm your Content infringes no third-party IP right. The licence you grant us is perpetual, worldwide, non-exclusive, royalty-free, sublicensable, and transferable, and you waive moral rights for its purpose except where the law makes them mandatory. We will never sell your Content to another platform, though in a sale, merger, or restructuring we may transfer the licence. Our DMCA Takedown Policy explains how to report infringing Content.

Co-authored content

Anyone other than the uploading Creator who features in Content must either be tagged as a verified Creator or have given a signed release form confirming they are at least 18 and consent to appear. You and each co-author must provide any documentation we request. Any person featured may withdraw consent at any time, after which we remove the Content. Claims arising from Co-Authored Content are between the Creators concerned, and you release us from those claims.

AI-generated and sponsored content

AI-generated Content must not depict a real person without consent, must be labelled #AI or #AIGenerated, and must comply with all other Terms. Sponsored Content must be labelled #ad, #sponsored, or #paidpromotion and identify the paying brand; must not advertise tobacco, e-cigarettes, illegal drugs, weapons, or prescription medicines; must not promote illegal gambling; and must not target alcohol advertising at minors.

Sharing, linking, and domain names

You may share a link to a Creator account on another platform if it complies with our Terms and that platform's. Do not imply endorsement where none exists, and do not promote a SwordPay account through paid search advertising. Links from SwordPay to other sites are for convenience only. You may use a domain containing the SwordPay trademark only if you are a verified Creator, the domain redirects to your account, and we have given written permission and a signed licence.

Liability

We do not exclude or limit liability where it would be unlawful to do so, and consumers may rely on mandatory local law. For UK and EU consumers we are not liable for loss of profit, business, revenue, opportunity, or anticipated savings, or for unforeseeable loss. For US consumers our total liability for any claim is limited to US\$250. For Business Users our total liability is limited to the greater of 100% of the Platform Fees you paid us in the prior 12 months or US\$5,000, and we exclude implied terms to the extent the law allows. We are not liable for disclosure of your identity by another user (including doxing) or for events outside our reasonable control.

Limitation period and disputes

Any claim against us must be commenced within one year of when the cause of action arose or when you discovered or ought to have discovered the relevant facts, whichever is earlier. Before any legal proceeding you must contact support@swordpay.io and attempt good-faith resolution, and if we request it, submit the dispute to pre-suit mediation. These Terms are governed by the laws of England and Wales, except for any mandatory rule of the country where you live. UK and EU consumers may use the courts of England and Wales or their home country; consumers elsewhere and Business Users are subject to the courts of England and Wales.

General

If any provision is unenforceable, the rest continues in effect. Our failure to enforce a provision is not a waiver. You may not transfer or assign your rights or obligations; we may. These Terms are the entire agreement between you and us regarding SwordPay and supersede any prior understanding. Nothing here creates an agency, partnership, joint venture, or employment relationship. We may update these Terms at any time, and material changes will be notified by email or in-platform Notice.

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